

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
AT WICHITA, KANSAS**

BRYCE SEILER,	)	
	)	
Plaintiff,	)	
vs.	)	Case No.
	)	
CURTIS D. NEAL AND	)	
DANNY WOOD TRUCKING LLC	)	
	)	
Defendant(s).	)	
_____	)	

COMPLAINT

COMES NOW the Plaintiff, by and through counsel of record, Shawn P. Aldrich and Dustin L. DeVaughn of DeVaughn James Injury Lawyers, and for Plaintiff's claims against the Defendants, alleges and states:

A. PARTIES

1. Plaintiff, Bryce Seiler, is a resident and citizen of Cheney, Sedgwick County, KS.
2. Defendant, Curtis D. Neal, is a citizen of Garfield County, OK and may be served at Defendant's residence at 1404 S. Jefferson, Enid, OK 73701.
3. Defendant, Danny Wood Trucking LLC, is a Domestic limited liability company organized in the State of Oklahoma. It may be served through its Process Agent, TRUCK PROCESS AGENTS OF AMERICA, INC., 820 W. Danforth Rd., #1059, Edmond, OK 73003 and the members/partners are all citizens of Oklahoma as they are all domiciled in Oklahoma.

B. JURISDICTION AND VENUE

4. This Court has jurisdiction over the persons and subject matter.
5. Venue is proper in the Wichita division of the Kansas District Court of the Federal

District Court.

6. This collision took place in Goddard, Sedgwick County, Kansas on 05/29/2024.
7. This action is brought pursuant to 28 U.S.C. § 1332, in that the amount of controversy exceeds seventy-five thousand dollars (\$75,000.00) exclusive of interest and costs and on the basis of diversity of citizenship.

C. NATURE OF ACTION

8. This is a civil action for personal injuries suffered by Plaintiff, Bryce Seiler.
9. This action arises out of a motor vehicle collision in Goddard, Sedgwick County, Kansas on 05/29/2024.
10. Plaintiff was eastbound on US-54 in Goddard, Kanas, when the semi-truck and trailer being operated by Defendant, Curtis D. Neal, turned in front of the Plaintiff's vehicle, causing a collision.

D. CAUSE OF ACTION - NEGLIGENCE

11. At all times relevant herein, Defendant, Curtis D. Neal, was an employee and/or agent of Defendant, Danny Wood Trucking LLC, and was operating in the course and scope of his employment with Defendant, Danny Wood Trucking LLC.
12. Defendant, Curtis D. Neal was hired, supervised, and trained by Defendant, Danny Wood Trucking LLC.
13. The actions and omissions of Defendants Curtis D. Neal and Danny Wood Trucking LLC (both independently and through driver Curtis D. Neal under Respondeat Superior and Vicarious Liability) were negligent and careless for the following reasons:
 - a. Failure to yield the right-of-way;
 - b. Following too closely;

- c. Inattentive operation of a motor vehicle;
 - d. Failure to maintain a proper lookout;
 - e. Failure to drive with reasonable care;
 - f. Failure to give warning;
 - g. Failure to drive at a safe speed;
 - h. Failure to maintain control of a motor vehicle;
 - i. Failure to take evasive action;
 - j. Careless driving; and
 - k. Negligence and negligence per se for violations of laws, ordinances, and/or statutes of the State of Kansas and/or the City of Goddard;
 - l. Other negligent actions and/or omissions to be supplemented after discovery.
14. Defendant, Danny Wood Trucking LLC was further negligent by failing to properly hire, train, and supervise its employees and/or agents, including Curtis D. Neal, in a way that would ensure their operation of motor vehicles in a safe and prudent manner to prevent harm to other motorists.
15. The negligence of Defendants, Danny Wood Trucking LLC and Curtis D. Neal directly and proximately caused the motor vehicle collision that injured Plaintiff, Bryce Seiler
16. Danny Wood Trucking LLC is a motor carrier and operating under authority through the United States Department of Transportation with an assigned D.O.T. number of 1414676.
17. Upon information and belief, the semi-trailer truck being operated by Curtis D. Neal was owned, maintained, dispatched, supervised, controlled and repaired

Danny Wood Trucking LLC and was used as a commercial motor vehicle in both intrastate and interstate business making it subject to the Federal Motor Carrier Safety Administration regulations under 49 C.F.R. Sections 381 et. seq.

18. 49 C.F.R. § 390.3(e)(1) & (2) provide that every driver and employee shall be instructed regarding and shall comply with all applicable regulations contained in the FMCSR.
19. 49 C.F.R. § 390.5 provides that "motor carrier" means a for-hire motor carrier or a private motor carrier. That term includes a motor carrier's agents, officers, and representatives as well as employees responsible for hiring, supervising, training, assigning, or dispatching of drivers.
20. Danny Wood Trucking LLC was at all material times a "motor carrier" and an "employer" of its driver, Curtis D. Neal, in regard to the operation of a commercial motor vehicle as defined in 49 C.F.R. §382.107.
21. The negligence of Defendant, Danny Wood Trucking LLC, and their employee/agent Defendant, Curtis D. Neal, directly and proximately caused the collision and the personal injuries and damages of Plaintiff.
22. As a result of Defendants, Danny Wood Trucking LLC and Curtis D. Neal's negligence, Plaintiff sustained severe personal injuries. Plaintiff has or is expected to sustain past medical expenses, future medical expenses, past lost wages, future lost wages, medical mileage, and past and future non-economic damages such as pain, suffering and mental anguish.

WHEREFORE, Plaintiff requests judgment against defendants for an amount in excess of \$75,000 plus costs and any further relief this Court deems fair, just and equitable.

Respectfully submitted,

DeVaughn James Injury Lawyers

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DEMAND FOR PRETRIAL CONFERENCE AND JURY TRIAL

COMES NOW the plaintiff and demands a pretrial conference and a trial by jury.

DESIGNATION OF PLACE OF TRIAL

COMES NOW the plaintiff and designates Wichita, Kansas as the place for trial in this matter.

Respectfully submitted,

DeVaughn James Injury Lawyers

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